

IN THE HONOURABLE SUPREME COURT OF THE REPUBLIC
OF LIBERIA, SITTING IN ITS MARCH TERM, A.D. 2016.

BEFORE HIS HONOR: FRANCIS S. KORKPOR, SRCHIEF JUSTICE
BEFORE HIS HONOR: KABINEH M. JA'NEHASSOCIATE JUSTICE
BEFORE HER HONOR: JAMESETTA H. WOLOKOLIE.....ASSOCIATE JUSTICE
BEFORE HIS HONOR: PHILIP A.Z. BANKS, IIIASSOCIATE JUSTICE
BEFORE HER HONOR: SIE-A-NYENE G. YUOH.....ASSOCIATE JUSTICE

Ousmane Keita of the City of Monrovia,
Liberia..... APPELLANT

VERSUS

Mohammed A. Keita also of the City of
Monrovia, Liberia.....APPELLEE

APPEAL

GROWING OUT OF THE CASE:

Ousmane Keita of the City of Monrovia,
Liberia.....PETITIONER

VERSUS

Mohammed A. Keita also of the City of
Monrovia, Liberia.....RESPONDENT

PETITION FOR SPECIFIC
PERFORMANCE

HEARD: October 29, 2015

DECIDED: June 24, 2016

MADAM JUSTICE YUOH DELIVERED THE OPINION OF THE COURT

On June 1, 2004, Mr. Ousmane Keita, the appellant herein, filed an action of Specific Performance against Mr. Mohammed A. Keita, the appellee, in the Sixth Judicial Circuit for Montserrado County, sitting in its June Term, A. D. 2004, then presided over by His Honor Wynston O. Henries. The petition sought to compel the appellee to specifically perform in accordance with the terms and conditions of a Memorandum of Understanding executed by the parties in January 2002, and wherein the appellant authorized the appellee to lease his property for three (3) years without interference, in order to liquidate an amount owed the appellee by the appellant.

The undisputed facts leading to the suit for specific performance are as follows:

Sometime prior to the Liberia Civil Crises of 1990, the appellant surrendered his deed to a of parcel of land containing one lot lying and situated in Lakpazee, Sinkor, Monrovia with three buildings constructed thereon, as a collateral for a loan amount of US\$3,000.00 (Three Thousand United States Dollars) to a shipping entity called the African Seaway Shipping Line. There is no indication in the records as to a time or date for the repayment of the loan by the appellant.

However the records show that the appellant was out of the bailiwick of Liberia due to the civil war when the shipping entity requested the repayment of the loan amount. In order to redeem his father's deed, the son of the appellant, Mohamed Kieta appealed to the appellee to make payment of the US\$3,000.00 (Three Thousand United States Dollars) on the appellant's behalf to the shipping company. The appellee consented and made the said payment, redeemed the appellant's deed but retained same pending repayment by the appellant. Upon the appellant's return to Liberia, he was informed of the transaction between his son and the appellee. A promissory note dated January 5, 1998, show the appellant, Ousmane Keita, committing himself to the repayment of the US\$3,000.00 (Three Thousand United States Dollars) on or before April 30, 1998. The promissory note also stipulated that failure on the part of the appellant to repay said amount at the end of the within mentioned date, the appellee, Mohammed A. Keita would have the unrestricted right to take full ownership of the appellant's land including the buildings thereon. We quote verbatim the promissory note as follows:

" I, the undersigned, Keita Ousmane of the City of Monrovia, Liberia for value received, do hereby promise to pay to Mr. Mohammed A. Keita through his agent/legal counsel Tulay & Associates of 70 Ashmun Street, P.O. Box 2810, Monrovia, Liberia the full and just sum of US\$3,000.00 (Three Thousand United States Dollars) on or before the 30th day of April, A.D. 1998.

Should I fail to make full payment of the above mentioned amount at the time and manner aforesaid, the said Mr. Mohammed A. Keita has the unrestricted right to seize and take lawful possession of my parcel of land with all improvements thereon. The said parcel of land is situated and described as follows, to wit:

Commencing at the Northwestern corner of said lot and running on magnetic bearings as follows: thence running N 55° E 165.0 feet to a point; thence running S 35° E 66.0 to a point; thence running S 55° W. 165.0 feet to a point; thence running N 35° W. 66.0 feet to the place of commencement and containing one (1) lot or 1/4 acre of land and no more. And dispose of same without any further notice or without any court proceedings."

The records further show that about eleven (11) days after the execution of the afore quoted promissory note and one hundred eight (108) days before the expiration date, a warranty deed dated January 16, 1998 which was admitted into evidence by the appellee show a purported transfer of the appellant's title to his entire land including the three buildings to the appellee for an amount of US\$8,000.00(Eight Thousand United States Dollars).

We note that besides the absence of a receipt authenticating the US \$8,000.00 (Eight Thousand United States Dollars) allegedly paid by the appellee as sale price for the appellant's property; there is no proof that the said amount was the fair market value of the property or that there was a valid consideration for the sale of the property containing three constructed (3) buildings. Given these facts the amount of US \$8,000.00 purporting to be the sale price of the appellant's property seems infinitesimal.

No wonder the appellant's insistence that at no time did he sell his land to the appellee for an amount of US\$8,000.00(Eight Thousand United States Dollars): In fact the appellant claimed that he made part payment of US\$1,000.00 (One Thousand United States Dollars) against the US\$3,000.00 (Three Thousand United States Dollars) to one Abraham Keita, the appellee's brother. The appellant also claimed that he being illiterate, the appellee took advantage of this and fraudulently made him to sign a document that was now being claimed by the appellee as a deed. The appellant recalled that he was put under the belief that his deed was with a bank and that he was required to sign the document presented to him by the appellee for the retrieval of his deed from the bank. Our attention is drawn to the alleged sale coming barely eleven (11) days following execution of the now void promissory note, and far ahead of the deadline of April 30, 1998 for the repayment of the US\$3,000.00. We were therefore not surprised to see claims and counterclaims by the parties on the veracity of this purported transfer of title.

The Court observes that a receipt was issued by Abraham Keita, the brother of the appellee, wherein he acknowledged an amount of US\$1,000.00 paid by one Sekou Kromah on behalf of the appellant, Ousmane Keita. The receipt was witnessed by three individuals including Sekou Kromah himself but it did not state any reasons for which the money was being paid to Abraham Keita, the appellee's brother. We will therefore say nothing further on this matter.

On the other hand the appellee counter-claimed that at no time did his brother receive any payment from the appellant and that the property was duly transferred to him by the appellant for the amount of US\$8,000.00(Eight Thousand United States Dollars). Both parties having failed to prove the payment or receipt of the US \$1,000.00, which was paid through and received through third parties, we will not be bothered about this issue of US \$1,000.00.

We note that on July 28, 1998, while these claims and counter-claims as to the transfer of the property were ongoing, the appellee executed a lease agreement in favor of one Alhaji S. Fofana for the disputed property for a period of three years commencing from the P^t day of January A. D. 1999 to the 1st day of January, A. D. 2002, with a two year optional period on terms and condition to be agreed upon. In that lease agreement, the parties agreed on an annual rental fee of US\$2,700.00 (Two Thousand Seven Hundred United States Dollars) for two (2) building situated on the said property

The appellant being dissatisfied with the manner in which the appellee had laid claim of ownership to his property, filed a complaint with the Elders of the Muslim Community in Liberia. The Elders, upon examination of the transactions which resulted into the purported transfer concluded that the appellant, Ousmane Keita had no intention to part with title to his property, and upon noting that the appellee had already leased the property for three years, facilitated the execution of the above mentioned memorandum of understanding that give rise to the filing of the suit for specific performance by the appellant.

Under the memorandum of understanding, the parties agreed that the lease agreement which the appellee had entered with Alhaji Fofana be continued for the three years period and that upon the expiration thereof, the appellee transfer title to the property back to the appellant. We note here, that the one lot of land, subject of this dispute, had three houses and that appellant's son was occupying one of the rooms in a building on the said property prior to the execution of the lease

agreement by the appellee and that he remained in said room throughout the duration of the lease agreement.

We herein reproduce the memorandum of understanding verbatim, as follows:

"Whereas there was a dispute by and between we the undersigned,. Alhaji Mohammed Kieta and Brother Kieta Ousmane, all of the City of Monrovia, County of Montserrado, Republic of Liberia, relative and pertaining to a piece of Real Property with buildings thereon:

"Commencing at the Northwestern corner of said lot and running on magnetic bearing as follows: Thence running H 55°E 165.0 feet to a point; Thence running S35°E 66.0 feet to a point; Thence running S55°W 165.0 feet to a point; Thence running N35°W 66.0 feet to the place of commencement and containing one (1) lot of $\frac{1}{4}$ acre of land and no more."

And whereas Imam Ismael Sesay, Shiek Kafumba Konneh, Alhaji Mory Sala Sesay, Brother Yussif D. Kaba and Brother Mohammed Sesay,. all of the City of Monrovia, County of Montserrado, Republic of Liberia, herein after known and referred to as Intervenors, requested to intervene and with the permission and consent thereof, we the undersigned did intervene in the said dispute with the end objective of resolving same in accordance with the principles of Islam, Humanity and Brotherhood.

Whereas after consultation with we, the undersigned and at the conclusion of an investigation conducted by them with our consent and participation, the said INTERVENORS concluded and resolved as follows:

1. That title to the property in dispute which was the subject of a mortgage legally entered into Brother Kieta Ousmane, was transferred to and rest in Alhaji Mohammed Kieta by virtue of value acknowledged and evidenced by a duly signed and probated Deed Transferring the title of same from Brother Keita Ousman to Alhaji Mohammed Kieta.
2. That an examination of the nature and substance of the transaction which resulted into the transfer of title from the said Brother Keita Ousmane to Alhaji Mohammed Keita and considering that Brother Keita Ousmane entered into the entire transaction not with the objective of parting with title to the said property but rather to be of help to his fellow Islamic Brother and is willing, ready and prepared to make refund to Alhaji Mohammed Keita of all amount and interest which the said Alhaji Mohammed Keita may have invested and/or expanded on behalf of the said Brother Keita Ousmane relative to the mortgage referred to herein, it was resolved that avenue be created to have Brother Keita Ousmane make refund of any and all amount expended and invested by Alhaji Mohammed Keita in a way and manner that shall not be inimical to the interest of Alhaji Mohammed Keita and. that at the end of all such payment, Alhaji Mohammed Keita shall have title to the said property reverted to Brother Keita Ousmane. Coincide
3. That considering that Alhaji Mohammed Keita had previous to the intervention of the intervenors entered into a Lease Agreement of the said property for the full and complete period of three (3) calendar years certain for value which the intervenors and we the undersigned consider to be just and equitable in satisfaction of the investment made by

Alhaji Mohammed Keita in connection with the said property, it was resolved that at the conclusion of the terms and conditions of the Lease Agreement, Alhaji Mohammed Keita should transfer to Brother Keita Ousman title to the said property.

Whereas for the sake of Islamic Brotherhood and peace and understanding, we, the undersigned have agreed and accepted the conclusion and resolutions of the interveners herein named;

Now, therefore, for and in consideration of the intervention of the intervenors herein named and the mutual covenants and agreements herein contained to be kept; fulfilled, performed and executed, we the undersigned do hereby agree as follows:

WITNESSETH

1. That for and in consideration of value paid and acknowledged by virtue of the transferred Deed executed by Brother Keita Ousman, it is agreed to and understood by we the undersigned that the Lease Agreement entered into and executed by and between on the one hand Alhaji Mohammed Keita and the other hand Alhaji Sekou Fofana for the full and complete period of three (3) calendar years certain same commencing from the 1st day of January A.D. 1999 up to and including the 1st day of January A.D. 2002 shall remain in full force and effect without any interference whether direct or indirect on the, part of Brother Keita Ousman, his Representative, Agents and/or Assigns.
2. That Brother Keita Ousman has promised and covenant that he shall defend and protect the quiet and peaceful possession and occupancy of the said property by Alhaji Mohammed Keita and/ or Alhaji Sekou Fofana for the full and complete period provided for herein up to and including the expiration of the terms and conditions of the Lease Agreement entered into by and between Alhaji Mohammed Keita and Alhaji Sekou Fofana.
3. That it is further mutually agreed to and understood by we, the, that for and in consideration of the intervention of the intervenors and the that shall be accrued to Alhaji Mohammed Keita, and said Alhaji Keita and agreed to transfer title to the said property to Brother Keita Ousmane on the 2day of January A.D. 2002 and that Brother Keita Ousmane shall be responsible to pay or cause to be paid all fees, expenses and other payment that may be necessary in the processing of all to the transfer of title to the said property from Alhaji Mohammed Keita to Brother Keita Ousmane.
4. We the undersigned, have also mutually agreed that in the event that Brother Keita Ousmane, his agents and/or assigns interfere in any way with the possession, occupancy and/or quiet enjoyment of the said property by Alhaji Mohammed Keita, his lessor, agents and/or assigns during the period of the Lease entered into by and between the said Alhaji Mohammed Keita and Alhaji Sekou Fofana, the terms and conditions of this instrument shall be void and of no legal effect.
5. That this Memorandum of Understanding shall be binding upon the parties hereto and shall extend and be binding upon them, their heirs, executors, administrators, assigns and agents. Considering that Brother

Keita Ousmane entered into the entire transaction not with the objective of parting with title to the said property but rather to be of help to his fellow Islamic Brother and is willing, ready and prepared to make refund to Alhaji Mohammed Keita of all amount and interest which the said Alhaji Mohammed Keita may have invested and/or expanded on behalf of the said

IN WITNESS WHEREOF WE HAVE HERETO
SET OUR HANDS AND AFFIXED OUR
SIGNATURES ON THIS 7¹¹ DAY OF FEBRUARY
A.D. 1999

Upon the expiration of the three years lease period, that is, January 1, 2002, the appellee refused to transfer the property to the appellant. The appellee alleged that his refusal was due to the appellant's interference with his quiet enjoyment of the property, which was in violation of clause four of the memorandum of understanding and therefore, by the terms and conditions of said clause the act by the appellant rendered the memorandum of understanding *void ab initio*. Thus, the appellant's petition for specific performance filed on June 1, 2004, before the Sixth Judicial Circuit, Court for Montserrado County.

On June 9, 2004, the appellee filed his returns in which he acknowledged the facts as stated herein but averred that the appellant breached the non-interference clause, that is, clause 4 of the Memorandum of Understanding by allegedly entering the leased premises in February of 1999 collected rental payments from the tenants while he (the appellee) was away in the Republic of Ghana and that the appellant subsequently evicted his tenants. The appellee concluded that in accordance with clause four of the MOU, the act by the appellant rendered same void and of no legal effect and thus the property remained his.

On July 2, 2004, twenty three days (23) after the appellee filed his returns, he obtained a Clerk Certificate to the effect that the appellant did not file a reply within statutory time which could have allowed the appellant to traverse- his allegation of the appellant's interference into the leased premises thus said allegation was deemed admitted in accordance with law.

Our Civil Procedure and case laws provide that:

"Averments in a pleading to which a responsive pleading is required are deemed admitted when not denied in the responsive pleading. Averments in a pleading to which no responsive pleading is required shall be taken as denied or avoided." Civil Procedure Law, Rev. Code: 1:9.8(3); *Cooper v. Cooper*, 39LLR 220 239 (1998)

The question we ask is, whether a responsive pleading to the returns is a mandatory requirement to a petition for specific performance. According to our Civil Procedure Law a petition for specific performance falls under special proceedings which are commenced by the filing of a petition and if there is an adverse party, a returns thereto. *Civil Procedure Law, Rev. Code 1:16.5*. Although there may be other forms of pleadings as required in an action, petitions are not the kinds of pleadings which require the three-stage filing, such as complaint, answer and reply. Rather, petitions fall under the above quoted provision of law which provides that averments in a pleading to which no responsive pleading is required shall be taken

as denied or avoided. Hence, the appellee's allegation of the appellant's interference into the leasehold right is deemed to have been denied or avoided and we so hold.

Additionally, the Civil Procedure Law quoted recognized that in special proceedings there is no need for a reply by the following provision:

"in a special proceedings there shall be a petition, which shall comply with the rules of complaint in an action, and a return if there is an adverse party. There may be such other pleadings as are authorized in an action."
Civil Procedure Law Rev Code 1:16.5 [Citations]

The action of specific performance being a special proceeding requires only the filing of a petition and a return. The filing of a reply being discretionary, we hold that the clerk's certificate showing that the appellant did not file a reply was an exercise in futility and therefore a legal nullity.

Thereafter, during the period July 2, 2004 to April 3, 2007, several notices of assignments were issued, served and returned served upon the parties to appear for the disposition of law issues, but under the gavels of three separate assigned judges, namely Yussif D. Kaba, Karboi Nuta and Emery Paye, no hearing was held on the petition for specific performance. We note that the appellant, Ousmane Keita died intestate on September 8, 2006, two years following the filing of the petition for specific performance. On September 29 2006 the appellant's children, Mamadee Keita and Lassana Keita, applied for and were granted Letters of Administration by the Monthly and Probate Court of Montserrado County to administer the intestate estate of the appellant, Ousmane Keita.

On May 21, 2007, approximately eight (8) months subsequent to the granting of the Letters of Administration, the administrators, Mamadee Keita and Lassana Keita filed a motion for substitution of party with the trial Court sitting in its March Term A. D. 2007 at the time presided over by His Honor Emery S. Paye. The counsel for the appellee interposed no objection to the motion and on May 29, 2007, the court heard said motion and granted same.

Subsequently and again,. following several notices of assignment, trial commenced on May 27, 2008, approximately one (1) year following the granting of the motion for substitution of parties. At the call of the case, the Lawyers for the appellee, Atty. Emmanuel A. Tulay, and Cllr. Roger K. Martin, Sr., of Tulay & Associates Law Offices and Martin Law Offices respectively, made a submission in which they requested the court to grant them time to study the case claiming that they had just been retained as additional counsels, which request was granted by the trial court.

We again note that following the issuance of several notices of assignments between June 23, 2008 to December 30, 2008, trial commenced on January 14, 2009, this time under the gavel of Judge, S. Geevon Smith.

At the trial the appellant produced three witnesses in persons of Mohammed Keita, son of the late appellant Ousmane Keita, Lassanah Keita and Mr. Mohammed Zayzay.

The Appellant's three witnesses basically recounted the averments in the complaint leading to the execution of the memorandum of understanding. The witnesses also testified that the appellant requested for one of the three buildings on the premises to be used as residence for his family but the appellee refused and only offered the appellant's son Mohammed Keita a room in one of the three buildings prior to the lease agreement and that appellee permitted him to remain in same during the life of the lease agreement.

When the appellant rested with the production of oral and documentary evidence, the appellee produced four witnesses in persons of Ishmeal O. Saysay, Judge Yussif D. Kaba and Musa Keita and the appellee himself, who took the stand and testified on his own behalf alluding to the facts and circumstances culminating in the execution of the February 7, 1999 memorandum of understanding; that the appellant son's refusal to vacate the property during the entire three (3) years period deprived him from full occupancy of the entire premises thus constituting a breach of clause 4 of the MOU; that the interference was also done by the appellant himself who had collected rents from the leased premises during the absence of the appellee from the country; and that he complained of these acts of the appellant to elders of the Muslim Community who had mediated the matter leading to the MOU.

The appellee's second witnesses, Iman Ismail Seysay testified that he received several complaints from the appellee regarding the appellant son's refusal to leave the leased premises, but the meetings did not yield any positive results; and that he was unaware of the appellant's property being returned to him by the appellee upon the expiration of the lease period.

The appellee's third witness, Judge Yussif D. Kaba, who later recused himself from the case narrated his involvement as one of the interveners who facilitated the execution of the memorandum of understanding between the parties; that upon receiving a complaint from the appellee that appellant had refused to vacate the leased premise, he advised the appellant to vacate the premises and leave the bailiwick of Monrovia until the expiration of the lease agreement; which advice the appellant accepted and did travel outside of Monrovia and that he did not see the appellant again until the expiration of the lease period.

The appellee's fourth witness, Musa Keita, also narrated the events which led to the execution of the memorandum of understanding but unlike Judge Kaba's testimony, the witness claimed that the appellant remained on the property and never left Monrovia.

On February 13, 2009, both the appellant and the appellee having rested with the production of evidence in toto, the presiding Judge, S. Geevon Smith scheduled the case for argument on Monday, February 16, 2009.

The records do not show any arguments conducted on the scheduled date of February 16, 2009. It appears though, that Judge Geevon Smith's term ended without conducting the scheduled argument and there being no indication that he requested for the extension of his term to enable him conclude the case, Judge Peter W. Gbeneweleh presiding over the September 2011 term of the trial court, called the case for hearing anew. The below rule of court is enlightening on this matter:

"...in no instance might a case be continued beyond the term for which it is filed and set down for trial, except upon a proper, motion for continuance; provided, however, that should the business of the court be such that a particular case is not reached during the., session, such case shall be continued as a matter of course.." *Rule 7, Circuit Court Rules Revised.*

Also, it is the principle of law extant in this jurisdiction that it is only the judge who hears a case who must decide same and that a successor judge has no power to enter a judgment or enter a decree where the testimony was taken before his predecessor, and unless the parties consent or waive their rights, a judge, otherwise than the one who heard the testimony, may not grant a judgment. *LAMCO v. IDEL KASHAMI, 35 LLR 181, 186 (1988); 64AM JUR. 2D., JUDGES §34*

During this second trial under Judge Gbeneweleh, the appellant's son, Mohammed Keita was the only witness to take the stand and reiterated his previous testimony, that he had lived on the leased property prior to the execution of the memorandum of understanding and the lease agreement and remained thereon in a room in one of the three buildings, without the appellee asking him to vacate same.

Again the case remained undetermined and we observed a barrage of numerous notices of assignments issued during the period December 14, 2011, to March 9, 2012, this time under the gavel of Judge Emmanuel Kollie, of sainted memory, for the hearing thereon, who also did not conclude same.

Thereafter, another batch of notices of assignments are- observed for the resumption of trial on March 20, 2012, with Judge Yussif D. Kaba presiding. We recall that Judge Kaba had testified on behalf of the appellee during the first trial conducted by Judge Geevon Smith during the December 2009 term of the Civil Law Court and that he had participated in the mediation process leading to the execution of the memorandum of understanding of February 7, 1999. We believe that it was predicated upon this fact that Judge Kaba was residing before the court that might have prompted the appellant to request for a change of venue from the Sixth Judicial Circuit, Civil Law Court, Montserrado County, to the 13th Judicial Circuit Court, Margibi County when the case was called by Judge Kaba. The appellee having interposed no objection to the said application, same was granted. We view with disparagement the act of Judge Kaba as a member of the panel of interveners and architects of the memorandum of understanding between the parties, and who subsequently testified on behalf of one of the parties, to have attempted presiding over the self-same case. We have consistently admonished judges to jealously guard and uphold the dignity and independence of the judiciary and to always preclude themselves from questionable acts. It would seem however that these warnings are falling on deaf ears by the repetitive acts by some of our judges. This Court has therefore resolved to henceforth institute stringent administrative measures to deter these acts.

Notwithstanding the granting of the application for a change of venue by Judge Kaba, the case remained and continued on the docket of the Sixth Judicial Court for Montserrado County during its June Term, A. D. 2012, under the gavel of Judge J. Boima Kontoe as assigned circuit judge. There being no objection or exceptions made by either party to judge Kontoe's assumption of the hearing of the case notwithstanding the granting of the change of venue, this Court deems same

as a waiver of their rights and as courts are not obligated to do for parties what they ought to do for themselves, we will say nothing further on this issue.

At the commencement of the trial on August 7, 2012, counsel for the appellant produced two witnesses in persons of Mohammed Keita, son of the appellant and Mohammed Sesay, while the appellee also produced two witnesses in persons of the appellee himself and Imam Ishmeal O. Sesay. The witnesses for both the appellant and the appellee testified to similar accounts on the matter as they did during the first trial. As we have exhaustingly recounted the facts and circumstances of the case, as well as the witnesses' testimonies which remained unchanged, we will not burden this opinion by reciting these testimonies.

On August 14, 2012, the parties rested with the production of oral and documentary evidence and on August 17, 2012, the trial judge entered final ruling on the action of specific performance wherein he denied the petition of the appellant, Osmane Kieta on grounds that the appellant's son continued stay on the leased premises constituted a breach of clause 4 of the Memorandum of Understanding, which granted the appellee the right to retain the premises upon such alleged interference with his quiet enjoyment.

We quote herein the pertinent excerpt of the trial judge's ruling, to wit:

"In the mind of the court, specific performance will not lie in favor of a Petitioner to compel compliance with the terms of an agreement fundamentally breached by the very Petitioner. The court says that action of specific performance is an equitable action and one who comes in equity come with clean hands.

In the case at bar, the memorandum of understanding, the provision of which is sought to be enforced was not complied with by the very Petitioner when he, his agents and or assigns remained on the property, subject of said MOU and during the life of the lease agreement entered into by and between Mohammed Keita and Alhaji Fofana. The Supreme Court of Liberia have held in long line of opinions that a court should not decree specific performance of a contract in favor of a Plaintiff who does not come in court with clean hands. *Moses Agbage versus Elsie Browne*, 27 LLR 339 (1978). Mohammed Keita, Petitioner first witness testified or better still admitted that he had been living on the premises, subject of the memorandum of understanding during the life of said MOU up to and including now. Under our law, admission is evidence of high probative value especially when voluntarily made by a person of sound mind and memory as in the instant case of the Petitioner's first witness, Mohammed V. Keita and admissions made by a party or an agent acting within the scope of his authority are admissible, Civil Procedure Law, section 25.8. To reach the factual conclusion of the breach of the MOU by the Petitioner, this court thinks it appropriate to put count four of the MOU in perspective. Count four of the said MOU provides the following: "We, the undersigned and also mutually agree that in the event that Brother Keita Ousmane, his agent and or

assigns interfere in any way with the possession, occupancy and or quiet enjoyment of the said property by Alhaji Mohammed Keita, his lessee, agent and or assigns during the period of the lease agreement entered into by and between Alhaji Mohammed Keita and Alhaji Sekou Fofana, the terms and conditions of this instrument shall be void and of no legal effect."

In view of this admission by Petitioner's first witness who is not only Petitioner's son but also his agent to the effect that he had been living on the premises during the life of the MOU in violation of the above quoted provision of the MOU establishes sufficient reason why the' petition for specific performance should not be granted.

Wherefore, and in view of the foregoing, the petition for specific performance is hereby denied with costs against Petitioner. AND IT IS HEREBY SO ORDERED."

The appellant excepted thereto, announced an appeal to this Court and subsequently filed a 3 count bill of exceptions basically alleging that the trial judge erred when he ruled that the fact that the appellant's son remained on the property, subject of this dispute, same was a violation of clause four of the memorandum of understanding, thus denying the petition for specific performance.

We shall focus our analysis of this appeal on count 3 of the bill of exceptions as said count presents the entirety of the errors which the appellant claimed to have been committed by the trial court. It is trite law that the Supreme Court need not pass on all of the issues in the bill of exceptions or in the briefs filed by the parties, but only the important and germane ones that will bring finality to the matter-and settle the rights of the parties. *CBL v. TRADEVCO, Supreme Court Opinion October Term 2012; Knuckles v. TRADEVCO, 40LLR 49 53(2000); Vargas v. Morns, 39LLR 18 24(1998); LAMCO J.V. v. TRADEVCO, 26LLR 554(1978).*

Count 3 of the bill of exceptions reads thus:

3. "Petitioner submits that your Honour committed reversible error when in your final judgment ruled that "In the case at bar, the memorandum of understanding, the provision of which is sought to' be enforced was not complied with by the very petitioner when he, his agents and/or assigns remained on the property, subject of said MOU and during the life of the lease agreement entered into by and between Mohammed Keita and Alhaji Fofana." Petitioner says that under laws extent in this jurisdiction the burden of proof rest on the party who alleges a fact and the burden of proof required by the party to establish said allegation must be by the preponderance of evidence. As in keeping with the intent of the framers of the MOU and the terms and conditions of the MOU, the respondent on the direct and cross examinations told the court the alleged violation of MOU was due to the fact that petitioner's son, occupied one of the two houses leased to Alhaji Fofana and as a consequence he did not receive all of the rents anticipated to

underwrite his expenses incurred relative to the transactions of the subject property. There was no evidence produce of any complaint from Alhaji Fofana or his family of any interference, by the petitioner, his agent and/or assigns with the lease property nor was there meeting held by the intervener that brokered the MOU and/or any cancellation proceedings instituted by the respondent which he alleged took place not too long after the execution of the MOU. Petitioner says that the only evidence adduced during the trial was a communication addressed To Whom It May Concern written by the respondent allegedly alerting the intervener but no proof of delivery and/or action by the intervener and the testimony of Iman Ismail Sesay who took the stand and testified that he does know the area well, is not aware of the house allegedly occupied by the petitioner's son. All this do not amount to sufficient proof that will warrant any breach of the MOU."

When the case was called counsel for the appellant argued both in his brief and before this Court that the appellee had received rents from the leased property over and above the US\$3,000.00 (Three Thousand United States Dollars) he had expended to redeem the appellant's deed from the shipping company and the US\$8,000.00 (Eight Thousand United States Dollars) he purportedly paid to purchase the appellant's land, thus the intent of the memorandum of understanding was fully achieved; that the appellant son's presence on the premises cannot be construed as breach of the memorandum of understanding since same was at the knowledge and approval of the appellee; that the appellee is now raising this alleged breach simply because he intends to retain possession of the appellant's property and continue collecting rents therefrom at the detriment of the appellant. The appellant's counsel then concluded that appellee having stayed on the property for those three consecutive years and collected his rents without interference, the said property be reverted to him in accordance with the MOU.

On the other hand, although the appellee has not denied that he had leased the property for the said three years and had collected rents therefrom, it is his argument that the appellant interfered by collecting rents from tenants during his absence from the Republic and by the appellant's son remaining on the property throughout the period of the lease thus violating clause four (4) of the memorandum of understanding and thereby making the entire memorandum of understanding void *ab initio*.

The primary issue to be decided by this Court is whether or not, under the circumstances of this case, an action of specific performance will lie. But before delving into said issue we must first determine a collateral issue, that is, whether or not clause four of the memorandum of understanding was violated thus relieving the appellee from his obligation of returning title to the appellant upon the expiration of the lease period.

Without restating the said clause four (4) of the memorandum of understanding which is already quoted at diver places in this Opinion, our determination shall be based on the intent of the framers of and parties to the memorandum of

understanding, the witnesses' testimonies and the evidence adduced at trial by the appellee in substantiation of his claim of interference.

The preamble of the memorandum of understanding which sets the basis, objectives and intent of the parties, as envisaged by the framers and the parties themselves is quoted below:

"That considering that Alhaji Mohammed Keita had previous to the intervention of the interveners entered into a Lease Agreement of the said property for the full and complete period of three (3) calendar years certain for value which the intervenors and we the undersigned consider to be just and equitable in satisfaction of the investment made by Alhaji Mohammed Keita in connection with the said property, it was resolved that at the conclusion of the terms and conditions of the Lease Agreement, Alhaji Mohammed Keita should transfer to Brother Keita Ousmane title to the said property." [Our Emphasis]

This Court has held that in construing a contract and/or agreement, courts must look to the intention of the parties. The meeting of minds which is essential to the formation of a contract is not determined by the secret intentions of the parties, but by their expressed intentions. The question of whether a contract has been made must be determined from a consideration of the expressed intention of the parties that is, from consideration of their words and acts. Also, in the construction or interpretation of agreements, the primary purpose and guideline, and indeed the very foundation of all the rules for such construction or interpretation, is that the intention of the parties must be ascertained. Further, it has been held that the court will not, by construction, extend a stipulation so as to give it an effect beyond what the parties intended. *CFAO v. Cooper et al.*, 39LLR, 511 518-519(1999); *Louram Construction Company v. LBDI*, 31LLR 626 633 (1983); *Bestman v. Acolatse*, 24LLR 126 140-141(1975); *Bryant v. Harmon*, 12LLR 330 352(1956); 83 C.J.S., *Stipulation*, §11(a), pg 26.27; 17 AM JUR. 2d, *Contracts*, §243.

From the reading of the above stated preamble of the MOU it is clear that the intent of the framers and parties was twofold. Firstly, they agreed that the proceeds from the rents under the lease was sufficient to compensate the appellee in full, and any injuries or grievances he suffered at the instance of the appellant; and seeing that he had already entered into a lease agreement with a third party, that the rents would have compensated for any investment made to the property or otherwise to include all additional costs he may have incurred as a result of redeeming the appellant's deed from the shipping company and the purported purchase of the appellant's property; secondly, the framers and the parties being in full agreement of the just, adequate and equitable compensation to the appellee from the rents, they all resolved that the appellee transfer the property to the appellant upon the expiration of the three years lease period.

By its wordings we conclude that the memorandum of understanding constituted the full agreement between the parties with regard to their respective obligations and rights to the disputed property and therefore superseded any prior agreement and/or transactions between the parties to include the promissory note of January 5, 1998, and the warranty deed dated January 16, 1998 which purportedly transfer the

appellant's property to the appellee for an amount of US\$8,000.00(Eight Thousand United States Dollars).

Having determined the intent of the parties we shall now address the allegations of interference by appellant when he allegedly collected rentals from tenants and the appellant son's presence on the property which the appellee claimed constituted interference with his quiet enjoyment of the property and as such was a breach of clause 4 of the memorandum of understanding and rendered the MOU void *ab initio*, thus granting him the right to retain title to the property.

With regards to the allegation that the appellant had collected rents from the appellee's tenants, we note from the lease agreement that the appellee had only one lessee, Mr. Alhaji Sekou Fofana who, as already stated, had leased the subject property for the three years. Had any tenants been present on the property they would have been there at the instance of the appellee's lone lessee, Mr. Alhaji Sekou Fofana. It was therefore imperative that to substantiate this allegation, the appellee was duty bound to put his lessee on the witness stand, or any tenants of the lessee showing that rental payments were made to the appellant.

This Court has been unwavering and persistent in holding that "mere assertion does not constitute proof, but must be supported by evidence so as to warrant a court or jury accepting it as true; that evidence alone enables the court to pronounce with certainty concerning the matter in dispute and, that absent the best evidence, even the best laid case will be defeated. *Levin v. Juvico Supermarket* 24LLR 187, 194 (1975); *The Heirs of the Late Jesse R. Cooper v. The Augustus W. Cooper Estate* 39LLR 750, 757(1999); *Pentee v. Tulay* 40LLR, 207 215 (2000); *Knuckles v. TRADEVCO* 40LLR 511 525(2001); *Reynolds v. Garfuah* 41LLR 362, 371 (2003).

We hold therefore, that the appellee having failed to produce evidence, testamentary or documentary, in support of his allegation that the appellant had collected rents from tenants on the leased premises, this allegation must crumble under the weight of authorities of evidence as stated *supra*.

With regards to the presence of the appellant's son on the leased premises, the undisputed facts as shown by the records certified to this Court is that at the time of the execution the lease agreement between the appellee and a third party for a period of three years and prior to the execution of the memorandum of understanding, the appellant's son was occupying a room in one of the buildings. If said occupancy was an issue with the appellee, why did he not raise same at the time of executing these instruments to form a part thereof, as he did concerning the lease agreement with a third party. But instead, when he is to fulfill his obligation under the MOU by transferring title back to the appellant he is claiming interference.

It is the law that agreements are binding and one who is voluntarily a party thereto for any consideration, however small, cannot impeach his own deeds by raising issues as to its illegality after enjoying the consideration and that...courts are under a duty to recognize, protect and preserve the sanctity of valid and enforceable contracts. *Harris v. Mercy Corps/Liberia, Supreme Court Opinion, March Term, 2006*; *Norwegian Refugee Council v. Ernest F. Bana et al., Supreme Court*

Opinion, March Term, 2008; Dennis et al. v. K & H Construction Company; Supreme Court Opinion, March Term, 2008. [more citation]

The appellee having leased the appellant's property for the period of three years in accordance with the February 7, 1999 memorandum of understanding; having collected rents, which he did not dispute; and having failed to show by any piece of evidence that the presence of the appellant's son prevented the collecting of said rents, one of the main intent of the MOU, the appellee is estopped from raising the issue of interference by the appellant son's presence on the property during the life of the lease agreement and we so hold.

In view of all we have said, will specific performance lie?

Specific performance is an equitable suit which essence is to ensure that fair play is done or accomplished. It is the actual accomplishment of a contract by the party bound to fulfill it; for a decree for specific performance is nothing more or less than a means of compelling a party to do precisely what he ought to have done without being coerced by a court. A fundamental pre-requisite for enforcement of specific performance is that there must be a contract to be enforced and there must be no adequate remedy at law. *Ellis v. Johnson, 40LLR 474 478 (2001); Collins v. Ellias Brothers, 1 ILLR, 258 261 (1952); 49 Am. Jur2d, 6, Specific Performance,*

The memorandum of understanding constituted a contract between the parties; the appellant fulfilled his obligation under same by allowing his property to be leased by the appellee for the stipulated timeframe and receiving rents, which the appellee did not dispute; the appellee having fully recovered his just and equitably compensation, he should now fulfill his obligation under the MOU by transferring title to the appellant as also intended by the MOD. Hence, specific performance will lie against the appellee.

Wherefore and in view of the foregoing the judgment of the trial court which denied the appellant's petition for specific performance is reversed. The appellee is ordered to return the appellant's property along with his title deed.

The Clerk of this Court is ordered to send a mandate to the court below informing the judge therein to resume jurisdiction over this case and give effect to this Opinion. Costs ruled against the appellee. IT IS SO ORDERED.

Judgment Reversed

When this case was called for hearing, Counsellors Snonsio Nigba and Farmere G. Stubblefield of Stubblefield Nigba and Associates Inc., appeared for the appellant. Counsellor Tiawan Gongloe of Gongloe and Associates and Counsellor Amara Sheriff of Sherman and Sherman Inc., appeared for the appellee.